

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. :

Scenario 1/Bharatiya Nyaya Sanhita (BNS), 2023

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 376	Fraud (unlawful gain through deception).
Section 377	Cheating (deception to cause loss of property).
Section 374	Unlawful use of electronic devices (for creating fake portals/messages).

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

Section 377 (Cheating) is the primary applicable provision. The scammer: Used a false representation (fake bank logo, urgent KYC expiry message) to induce the victim into believing the communication was legitimate. Deceived the victim into voluntarily disclosing confidential data (customer ID, password, OTP) under false pretenses. Caused loss of ₹85,000 through unauthorized UPI/net banking transfers. Legal Reasoning*: **Section 377** defines cheating as "deceiving any person to cause them to deliver any property or to do or omit to do anything." The fake WhatsApp message and website constitute "false representation" (Illustration under BNS: *e.g., impersonating a bank to obtain account details*). The OTP entry was a direct result of the deception, making the transfer "caused by deception" (**Section 377**).
- 2

Section 376 (Fraud) applies as the scammer "obtained property" (₹85,000) through deceit. The fake link and message were tools to create a false scenario, directly triggering the unauthorized transfer. The use of the bank's logo for impersonation qualifies as "fraudulent means" (BNS, **Section 376**).
- 3

Section 374 covers the electronic deception method: Creating a fake website/logo (**Section 374** (2)) to "unlawfully obtain" electronic data (passwords, OTPs) for fraudulent purposes. This section criminalizes the *means* used to commit the fraud (**Section 374**), while Sections 376/377 address the *outcome* (theft of funds).
- 4

Precedent Note*: While BNS is new, its provisions mirror IPC Sections 420 (cheating), 465 (forgery), and 468 (forgery for cheating). BNS **Section 377** explicitly replaces IPC 420, making it directly applicable.

5

✓ STRENGTHS & RIGHTS

1

Cognizable Offense

Sections 376/377 are cognizable (police can arrest without warrant under BNS **Section 377** (2)).

2

Victim Rights

3

Right to file an FIR at *any police station* (BNS Section 377 (2)).

4

Police must investigate within 24 hours (BNS Section 176).

5

No bail for the accused at the initial stage (BNS Section 377 (3)).

6

Compensation

Victim can claim full restitution (including interest) from the accused under BNS **Section 376** (3).

7

Digital Evidence

WhatsApp logs, website IP, and transaction records are admissible without IT Act (BNS **Section 374**).

✗ RISKS & OBLIGATIONS

1

Section 377 (Cheating)

2

Imprisonment

Up to 5 years + fine.

3

Enhanced Penalty

If the deception involved impersonating a bank (**Section 377** (2)), sentence increases to up to 7 years.

4

Section 376 (Fraud)

5

Imprisonment

3–5 years + fine.

6

Aggravating FactorUsing bank logo (impersonation) attracts higher sentencing under **Section 376** (2).

7

Concurrent LiabilityAccused liable under both Sections 376 and 377 (BNS **Section 377** (3)).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

FILING COMPLAINT

1. Victim must file an FIR at local police station (not just the bank) under Sections 376/377.
2. Required Evidence: WhatsApp message, fake website URL, transaction records, and bank statement.
3. Investigation:
4. Police must trace digital footprints (IP logs, server data) under **Section 374** (3).
5. No delay: Case must be registered within 24 hours (BNS **Section 176**).
6. Charges Framing:
7. Police may charge under **Section 377** (cheating) as primary offense, with **Section 376** (fraud) as alternative.
8. **Section 374** will be cited as the *method* used (e.g., "unlawful use of electronic device to create fake portal").
9. Trial:
10. No bail at the stage of charge sheet (BNS **Section 377** (3)).
11. Trial conducted in fast-track court (BNS **Section 384**) for cyber frauds.
12. > Key Distinction from IPC: BNS eliminates "forgery" (IPC 465) as a separate offense; all fraud/cheating via digital means falls under **Section 376** /377. The use of bank logo is treated as *aggravated cheating* under **Section 377** (2), not forgery.
13. Conclusion: The scam constitutes **Section 377** (Cheating) with **Section 376** (Fraud) and **Section 374** (electronic deception). The victim should immediately file an FIR citing these sections, ensuring police prioritize digital evidence collection. The accused faces 3–7 years imprisonment if convicted.

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